

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

May 28, 2024

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne (arriving at 6:02 p.m.), Scott Roybal, and Jeff White. Absent: Tom Segrave. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Expression of Appreciation of the 2023-2024 Mayor's Youth Council and State of the Youth Address was made.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda). Mr. Johnson declared a conflict of interest due to items related to his employment. Upon request by Dr. Aldrich, and pursuant to support received by Mr. Johnson and Dr. Rinne, item #33(c) was removed from the Consent Agenda. Mr. Roybal moved to approve remaining items, seconded by Mr. Esquibel. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mr. Johnson who did not vote.

[CA] Minutes from Regular Meeting of the Governing Body on May 13, 2024. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing regarding the City's intent to apply for a 2024 Wyoming Business Council Business Ready Community Grant and Loan Program for a Community Readiness Project for essential infrastructure at the Precision Industrial Park. There being no comments or input and purpose of the public hearing having been met, Mayor Collins closed the public hearing.

ORDINANCE – 3rd READING – Amending Sections 1.4.3 Defined Terms and 5.8.8 Accessory Buildings of the Unified Development Code, clarifying Detached Buildings. Reporting for Public Services Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. White. Mr. Roybal moved to amend by substitute dated May 21, 2024, seconded by Dr. Rinne. Motion to amend by substitute carried. Voting "yes" – all members of the governing body present with the exception of Dr. Aldrich voting "no". Main motion as amended by substitute carried. Voting "yes" – all members of the governing body present. Comments were made by the following members of the governing body: Dr. Aldrich and Mayor Collins. (#4567)

ORDINANCE – 3rd READING – Amending Ordinance No. 4519 amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from HI Heavy Industrial, AG Agricultural, and County A-2 to LI Light Industrial for land located west of Burlington Trail

and south of and adjacent to HR Ranch Road. Mr. Roybal moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present. (#4568)

ORDINANCE – 3rd READING – Amending Subsections 6.5.4.b.3 Incentives / Bonus, 6.5.4.b.4 Creative Sign Program, and 6.5.8.j Billboards of the Unified Development Code, to restructure sign incentives and bonuses by modifying allowances for signs near interstate highways, allowances for shared signs, eliminating the Creative Sign Program, and clarifying applicability of certain billboard allowances. Mr. Roybal moved to approve on third and final reading, seconded by Mr. White. Mr. Roybal moved to amend by substitute dated May 21, 2024, seconded by Mr. Johnson. Motion to amend by substitute carried. Voting “yes” – all members of the governing body present. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present. (#4569)

ORDINANCE – 3rd READING – Amending Section 5.1.5 of the Unified Development Code to allow for up to three stories for detached dwellings, semi-attached dwellings, and attached dwellings. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present. Public comment was made by: Brenda Birkle, Affordable Housing Task Force and Brandon Swain. (#4570)

ORDINANCE – 3rd READING – Amending and updating the Solid Waste Fee Schedule in accordance with Section 8.44.010 of the Municipal Code of the City of Cheyenne, Wyoming, and repealing Ordinance No. 4503. Reporting for Finance Committee, Dr. Aldrich moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present with the exception of Dr. Aldrich voting “no”. (#4571)

ORDINANCE – 3rd READING – Amending Sections 10.82.030 and 10.82.040 of the Municipal Code of the City of Cheyenne, Wyoming, modifying the term of Dockless Vehicle licenses, specifying an effective date and making other conforming amendments. Dr. Aldrich moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present. (#4572)

ORDINANCE – 2nd READING – Approving and establishing revised water and sewer rates, tap and system development fees, administrative fees, service charges and penalties, and septic and commercial waste dump rates, as recommended by the Board of Public Utilities. Dr. Aldrich moved to approve on second reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body present with the exception of Dr. Aldrich and Mr. White voting “no”. Public comment was made by: Brenda Birkle, Affordable Housing Task Force. Comment was made by the following member of the governing body: Dr. Aldrich.

ORDINANCE – 2nd READING – Amending Chapter 5.78, Towing and Wrecker Recovery Operations, of Title 5, Business Licenses and Regulations, of the Municipal Code of the City of Cheyenne, Wyoming, modifying provisions governing towing and wrecker recovery operation licensure and the Police Department’s towing and wrecker recovery operation rotation list. Mr. Roybal moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present. Public comment was made by: Dave Rose,

Big Al's Towing. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. White.

ORDINANCE –2nd READING – Appropriating moneys for the City of Cheyenne, Wyoming for the various purposes in conducting the municipal government of said City and fixing the amount of general and special taxes as part of the revenue required to meet the said appropriation, all for the Fiscal Year beginning July 1, 2024 and ending June 30, 2025. Reporting for Committee of the Whole, Mr. Esquibel moved to approve on second reading, seconded by Mr. Roybal. Mr. Esquibel moved to amend by substitute dated May 23, 2024 (by increasing the City Council Department's Ward I Discretionary Account by \$11,666.67, the Ward II Discretionary Account by \$11,666.67 and the Ward III Discretionary Account by \$11,666.66 and by decreasing the Miscellaneous Department's Insurance and Bonding line item by \$35,000.00), seconded by Mr. Roybal. Motion to amend carried. Voting "yes" – all members of the governing body present. Dr. Rinne moved to amend by increasing the Mayor's salary to \$125,000. Motion died due to lack of a second. Main motion as amended carried. Voting "yes" – all members of the governing body present with the exception of Mr. Cook voting "no". Public comment was made by: Erin LeBlanc, Director, Laramie County Senior Services. Comments were made by the following members of the governing body: Dr. Rinne and Mr. Roybal.

ORDINANCE –1st READING – Defining the Terms and Conditions of employment for sworn officers of the Cheyenne Police Department for Fiscal Year 2024-2025, repealing and replacing Ordinance Nos. 4520 and 4539 – referred to Finance Committee. (SPONSOR – MR. WHITE)

ORDINANCE –1st READING – Amending Sections 1.4.3 Defined Terms and 2.2.6 Temporary Use Approval of the Unified Development Code, adding a minimum of fourteen days – referred to Public Services Committee. (SPONSOR – MR. ROYBAL)

ORDINANCE –1st READING – Amending Section 1.4.4.c Service Uses, Table 5-1 Zoning District Uses, Section 5.7.4 Child Care Uses, and Table 6-2 Required Parking of the Unified Development Code, changing Child Care Requirements – referred to Public Services Committee. (SPONSOR – MR. ROYBAL)

ORDINANCE –1st READING – Creating Section 10.24.190, Critical Traffic Control Areas; Creation and Administration; Enhanced Penalties, of the Municipal Code of the City of Cheyenne, Wyoming, authorizing the designation of Critical Traffic Control Areas and authorizing enhanced penalties as specified – referred to Public Services Committee. (SPONSORS – DR. ALDRICH, MR. COOK, MR. ESQUIBEL, MR. JOHNSON, MR. ROYBAL, MR. SEGRAVE AND MR. WHITE)

RESOLUTION – Adopting the fee schedule setting the approved towing service rates for towing charges related to calls for service by the Cheyenne Police Department made pursuant to the tow rotation list. Mr. Roybal moved to adopt, seconded by Mr. White. Motion carried. Voting "yes" – all members of the governing body present. Public comment was made by: Dave Rose, Big Al's Towing and Jerry Hargraves, Wrecker's Towing. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Cook, Mr. Johnson, Dr. Rinne and Mr. Roybal. (#6403)

RESOLUTION – Expressing the support of the Governing Body for the submission of an application by the Cheyenne Transit Program to the Wyoming Department of Transportation for grant funding under the Wyoming Rural Public Transit Program. Dr. Aldrich moved to adopt, seconded by Mr. White. Dr. Aldrich moved to amend by substitute dated May 20, 2024, seconded by Mr. White. Motion to amend by substitute carried. Voting “yes” – all members of the governing body present. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present with exception of Mr. Cook voting “no”. (#6404)

[CA] RESOLUTION – Supporting the submission of an application to the Wyoming Business Council under the Wyoming Business Ready Community Grant and Loan Program for an Enhancement Grant in support of the development of the Precision Industrial Park. Motion (per Consent Agenda) carried. (#6405)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Cheyenne Business Parkway, Thirteenth Filing, City of Cheyenne, Laramie County, Wyoming (located west of Christensen Road and south of and adjacent to Campstool Road). Motion (per Consent Agenda) carried. (#6406)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Centennial Heritage, 3rd Filing, City of Cheyenne, Laramie County, Wyoming (located east of Savannah Drive and south and north of Raleigh Drive). Mr. Roybal moved to adopt with staff conditions #1 & 2, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body present. (#6407)

RESOLUTION – Approving sanitary sewer service, by Outside User Agreement, for Laramie County, for the property known as the Archer Complex (south of the I-80 and Archer Parkway Interchange). Mr. Roybal moved to adopt, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present. Public comment was made by: Molly Bennett, Laramie County Public Works and Ben Hornok. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. White. (#6408)

[CA] RESOLUTION – Approving the budget of the Cheyenne Regional Airport Board for the for the Fiscal Year beginning July 1, 2024 and ending June 30, 2025. Motion (per Consent Agenda) carried. (#6409)

RESOLUTION – Approving the budget of the Cheyenne Downtown Development Authority for the Fiscal Year beginning July 1, 2024 and ending June 30, 2025. Dr. Aldrich moved to adopt, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present. Comments were made by the following members of the governing body: Mayor Collins, Mr. Johnson and Mr. Laybourn. (#6410)

[CA] RESOLUTION – Authorizing the City of Cheyenne Board of Public Utilities to discharge uncollectible debts pursuant to Wyoming Statute 16-4-502 – referred to Finance Committee. (SPONSOR – DR. RINNE)

[CA] RESOLUTION – Supporting the adoption of a Vision Zero Policy to eliminate fatalities and serious injuries that are a result of crashes on city streets within the City of Cheyenne by 2040 – referred to Public Services Committee. (SPONSOR – DR. ALDRICH)

Professional Services Agreement between the City of Cheyenne and Landmark Aquatics, for the Johnson Pool Evaluation and Design Project (2021 Specific Purpose Option Tax Fund). Dr. Aldrich advised there was no recommendation from Finance Committee. Dr. Aldrich moved to approve in an amount not to exceed \$236,957.00. Motion died due to lack of a second.

[CA] Professional Services Agreement between the City of Cheyenne and TPT Trails, LLC for the Belvoir Ranch, Phase 2 Design Build Trail Project (Belvoir Recreation Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$219,672.93). (#7975)

[CA] Grant Agreement between the City of Cheyenne, Transit Division, and the U.S. Department of Transportation for a Federal Transit Administration (FTA) Section 5307 Transit Capital Grant for the replacement of transit vehicles over the next three-year period (FTA Section 5307 Grant) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Metropolitan Planning Organization (MPO) and Quandel Consultants, Inc., for the Passenger Rail Station Site Selection Study (MPO Funds, County Funds and 2021 Specific Purpose Option Tax) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and The Design Studio, Inc. (TDSi), for the Johnson Pool Evaluation and Design Project (2021 Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Just Be You, Inc. d/b/a Star Playgrounds, for the Saddle Ridge Playground Design and Installation Project (Development Impact Fees) – referred to Finance Committee.

[CA] Purchase and Sale Agreement between the City of Cheyenne and Section 20 LLC for land located at the northeast corner of Powderhouse Road and East Carlson Street (Public Safety Infrastructure Fees) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and William H. Smith and Associates (WHS), for design services for the Cheyenne - Three Alleyway Project (2021 Specific Purpose Option Tax) – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Cheyenne Police Department, and Laramie County School District No. 1 for the School Resource Officers Program – referred to Finance Committee.

[CA] Renewal of Contract #7535 between the City of Cheyenne and Blue Cross Blue Shield of Wyoming for Third Party Administrator Services and Group Health Insurance benefits for City employees (Self Insurance Fund). Motion (per Consent Agenda) carried. (#7535)

[CA] Renewal of Contract #6837 between the City of Cheyenne and Delta Dental for Group Dental Insurance benefits for City employees (Various City Funds). Motion (per Consent Agenda) carried. (#6837)

[CA] Renewal of Contract #7523 between the City of Cheyenne and VSP Vision Insurance benefits for City employees (Various City Funds). Motion (per Consent Agenda) carried. (#7523)

[CA] Renewal of Contract #7536 between the City of Cheyenne and Granular Insurance Company for Stop Loss Insurance for City employees (Self Insurance Fund). Motion (per Consent Agenda) carried. (#7536)

[CA] Contract Modification #1 to Contract #7769 between the City of Cheyenne and Terracon Consultants, Inc., for landfill leachate system maintenance services to extend the contract for 2 years (Solid Waste Fund) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7760 between the City of Cheyenne and Miller & Sons Construction Inc. for the 2023 Miscellaneous Concrete Project for additional concrete curb, gutter, sidewalk and valley pans (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-10-24 for an Agreement between the City of Cheyenne and Reiman Corp for the HAWK Signals Construction Project (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (accepted the bid in an amount not to exceed \$831,294.75). (#7976)

Consideration of Bid #S-20-24 for an Agreement between the City of Cheyenne and Simon Contractors for the Public Works Improvements Project (2019-2022 Optional 1% Sales Tax Fund, Solid Waste Fund, & Fleet Maintenance Fund). Dr. Aldrich moved to accept the bid in an amount not to exceed \$2,377,017.25, seconded by Mr. Johnson. Dr. Aldrich moved to amend to include funding the amount of \$124,140.50 from General Fund Reserves for maintenance repairs to the Municipal Building, seconded by Mr. Roybal. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended carried. Voting “yes” – all members of the governing body present with the exception of Dr. Aldrich, Mr. Laybourn and Mr. White voting “no”. Comments were made by the following members of the governing body: Dr. Rinne and Mr. White. (#7977)

Consideration of Bid #S-21-24 for an Agreement between the City of Cheyenne and Spire Building Group for the Municipal Building Restroom Renovations Project (2021 Specific Purpose Option Tax Fund). Dr. Aldrich moved to approve in an amount not to exceed \$625,850.00, seconded by Dr. Rinne. Motion failed. Voting “yes” – Mr. Esquibel and Mr. Roybal. Voting “no” – Dr. Aldrich, Mr. Cook, Mr. Johnson, Mr. Laybourn, Dr. Rinne and Mr. White. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Esquibel, Mr. Johnson, Dr. Rinne, Mr. Roybal and Mr. White.

[CA] Consideration of Bid #S-22-24 for an Agreement between the City of Cheyenne and Richardson Construction, Inc. for the Hitching Post Storm Sewer and Paul Smith Way Project (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$1,693,498.45). (#7978)

[CA] Consideration of Bid #E-17-24 for the Cheyenne Junior League Bleachers Replacement (equipment only) Project (General Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-14-24 for an Agreement between the City of Cheyenne and S & S Builders, LLC, for the 2024 Dell Range Concrete Repair for Overlay Project (2023-2026 Optional 1% Sales Tax Fund and 2021 Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-16-24 for an Agreement between the City of Cheyenne and Asphalt Preservation, LLC, for the 2024 Crack Seal #1 Project (2023-2026 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid E-19-24 for one (1) new sliding axle transportation trailer for the City of Cheyenne Street & Alley Division (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-20-24 for one (1) new 2024-2025, 19,500 GVWR, cab & chassis with 45 foot aerial device body for the City of Cheyenne Traffic Division (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Request to amend a previously approved outdoor seating area for consumption by adding an additional area relating to City of Cheyenne Bar & Grill liquor license held by Paris West Restaurant and Bar, located at 1719 Carey Avenue, Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

[CA] Request to extend the time period in which Cheyenne Regional Airport Board d/b/a Cloud Nine Restaurant & Bar has to become operational for an additional year for their retail license, located at 300 East 8th Avenue, Cheyenne, Wyoming – referred to Finance Committee.

Appointment of Elisabeth DeGrenier to the Historic Preservation Board and Christopher Mickey to the Cheyenne Housing Authority Board. Dr. Aldrich moved to approve, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mayor Collins who did not vote (Mayoral appointments).

No comments were made on the Voucher Report as presented.

Comment was made by the following member of the governing body related to the Revenue Report: Mr. Johnson.

Announcement was made of a Public Hearing to be held June 10, 2024 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for proposed budgets for the City of Cheyenne and Board of Public Utilities for Fiscal Year 2025.

Announcement was made of a Public Hearing to be held June 10, 2024 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting, to receive comments and input for the Jolly Roger Urban Renewal Plan and Project as required by Wyoming Statute § 15-9-109.

Announcement was made of a Committee of the Whole meeting to be held on Monday, June 3, 2024 at 6:30 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting.

Public comment was made by the following under other business: Brandon Swain.

The following members of the governing body made comments under other business: Dr. Aldrich, Mr. Cook, Mr. Esquibel and Mr. Johnson.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:57 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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